

HOUSE No.



MAURA T. HEALEY
GOVERNOR

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KIMBERLEY DRISCOLL
LIEUTENANT GOVERNOR

April 16, 2026

To the Honorable Senate and House of Representatives,

In November 2024, you enacted and I signed a law designed to keep the Massachusetts economy strong and competitive in a rapidly changing world. That statute, Mass Leads, provided nearly \$4 billion in capital authorizations for investments in key sectors and established other policy changes intended to help businesses grow and people succeed. Team Massachusetts, led by Secretary of Economic Development Eric Paley, has been hard at work implementing those programs for the last year and a half. That work is helping Massachusetts maintain its status as a global hub for higher education, research and development, and technological innovation.

The world has changed dramatically since Mass Leads became law in November 2024. We now have a federal government implementing policies that undermine higher education and research, putting our innovation economy at risk. That same federal government is pursuing policies that have introduced unprecedented uncertainty into the global economy and have exacerbated the affordability crisis we are feeling here in Massachusetts, just like everyone else around the country. And misguided federal policies are making it harder to attract and retain global talent to our state.

Today, I am filing for your consideration a bill that will help address these new challenges: An Act Relative to Massachusetts Winning Global Investment, Talent, and Innovation (“Mass Wins”). This bill builds on Mass Leads, providing limited new capital authorizations totaling \$305 million to ensure we can support key sectors such as defense, applied AI, robotics, quantum and others. I am also including new authorizations for investments in our downtowns and main streets to help our smaller businesses and the residents who support them. To ensure we are maintaining fiscal responsibility, we are proposing to remove more than \$250 million of existing authorizations.

The bill proposes several policy changes and new initiatives that will help businesses, entrepreneurs and employees, as well as cities and towns. One of the most important is a new initiative called “GlobalMass.” As the federal government turns its back on global partners and puts up new barriers to global trade, Massachusetts is uniquely positioned to attract and retain global investment and talent. Massachusetts is viewed as one of the world’s leading innovation economies and we must continue to welcome opportunity from across the globe. I am asking Secretary Paley to implement GlobalMass to encourage global investment in Massachusetts and help international companies establish a footprint here. In addition to the modest capital authorization to support global launchpads—sites where global companies can begin to make their future in Massachusetts—the bill directs the state’s Pension Reserves Investment Management Board to provide seed investment of at least \$50 million for a new fund designed to attract global institutional capital to fuel the Massachusetts innovation economy.

This bill will also make it easier to start a business in Massachusetts. For too long, we have had the highest fees of any state for establishing a new Limited Liability Company (LLC). This fee structure has a disproportionate impact on entrepreneurs from disadvantaged communities, who are less likely to have access to upfront capital and may find it hard to pay a \$500 filing fee on top of all the other costs of starting a small business. It is time to change that. This bill proposes reducing the initial filing fee from \$500 to \$100, and then gradually increase the annual filing fee over the first few years of a new entity’s existence. The lowered fees will apply only to the new businesses that need the help, not to LLCs formed to hold real estate or that otherwise have significant assets. This long-overdue update sends a strong signal that Massachusetts embraces entrepreneurship and is committed to making it easier to start a business.

We also know that small businesses are facing rising costs on all fronts, including on materials and energy. We are going to help by expanding eligibility for the existing small business energy tax exemption. The eligibility thresholds have not been updated since 2006. If my proposal is enacted, the energy tax exemption will be available to approximately 20,000 additional micro- and small businesses.

Retaining talent is another of my top priorities. It is clear we need to do more to keep the young people who come from all over the country and around the world to study at our colleges and universities. Mass Leads created a new tax credit for businesses that increase the number of internships offered to young people looking to start their career in Massachusetts. Unfortunately, we have not been able to make this tax credit available because it was tied to a revenue surplus that has not materialized. But we can’t wait any longer. This bill includes a provision to make the tax credit available starting in 2027.

The bill will also benefit workers by closing a loophole in our laws on noncompetition agreements, ensuring workers get fair compensation during the period when they are prohibited from working. Allowing workers to move from one opportunity to another with fewer

restrictions—while also allowing employers to enforce non-competes when they need to—isn’t just a matter of basic fairness. It will help Massachusetts retain entrepreneurs who might otherwise start their business in a state where noncompetition agreements are restricted or banned.

We also know that high housing costs are contributing to our affordability crisis. During the past two years, we have made meaningful progress in addressing a housing shortage that has resulted from decades of under-production. This bill includes a number of provisions that will make it easier to build new housing. One provision will allow cities and towns to opt in to new rules that make it easier to convert commercial property to residential use. Another will clarify that the Board of Building Regulation and Standards can provide variances from the strictest of our nation-leading energy codes when relief is warranted. The bill will also codify the rules for local site plan approval to ensure more predictability for the housing and commercial uses that go through that process and authorize mayors of cities to propose changes to their city’s zoning ordinances. I am also proposing to reform the way zoning changes are made in Devens to ensure the community’s zoning bylaws can be amended in a timely way and enable the meaningful participation of Devens residents as well as surrounding municipalities.

The bill includes several provisions to help Secretary Paley and his team support business expansion in the state and attract companies to Massachusetts. Many of the states with which we compete allow their utility companies to offer discounted electricity rates. This bill will give Massachusetts the same tool, provided that the Department of Public Utilities determines the discounted rates will not increase costs for other ratepayers. I am also proposing several technical changes to our various business tax credit programs to make them more effective.

Finally, the bill includes a number of other changes to the law that will make it easier to do business and get things done: for example, by advancing electric grid innovation and deployment; requiring state licensing boards to waive redundant English proficiency testing for nurses; clarifying the kinds of entities that must be licensed as ticket sellers; allowing municipalities to pay for utility make-ready work consistent with standard industry practice; and reducing the burdens for licensed engineers to qualify for home inspector licensure.

These are just some of the key elements of this bill. Taken together, they reflect a focused effort to strengthen Massachusetts’ competitiveness, support businesses and workers, and respond to a rapidly changing economic landscape at a time when federal actions are creating new uncertainty and putting our innovation economy at risk. We cannot afford to wait. I look forward to working with you to get this bill passed before the end of session.

Respectfully submitted,

Maura T. Healey,
Governor

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to Massachusetts winning global investment, talent, and innovation.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to forthwith finance improvements to the commonwealth's economic infrastructure, drive industry innovation, and promote economic opportunity and job creation, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for a program of community development, economic
2 opportunities, support for local governments, increased industry innovation, job creation and the
3 promotion of economic reinvestment through the funding of infrastructure improvements the
4 sums set forth in section 2 for the several purposes and subject to the conditions specified in this
5 act, are hereby made available, subject to the laws regulating the disbursement of public funds.
6 These sums shall be in addition to any amounts previously authorized and made available for the
7 purposes of those items. The sums set forth in section 2 shall be made available until June 30,
8 2036.

9 SECTION 2.

10 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

Office of the Secretary

7002-8079 For a capital grant program to be administered by the executive office of economic development to provide grants to private businesses that are constructing or expanding commercial, industrial or manufacturing facilities in the commonwealth which may include, but shall not be limited to: (i) the construction or expansion of facilities in a manner that eliminates or minimizes the use of fossil-fuel heating and cooling equipment, or incorporates other decarbonization measures that would not otherwise be incorporated into the facility design; (ii) the integration of design features that make a facility more resilient to the impacts of climate change, where such design features would not otherwise be economically feasible; and (iii) capital investments that support the creation of a significant number of new jobs in the commonwealth; provided, that the secretary of economic development shall issue program guidelines around the administration of the program which may include the administration of the program through a contract with the Massachusetts Development Finance Agency established in section 2 of chapter 23G of the General Laws, or any other appropriate quasi-governmental agency..... \$25,000,000

7002-8080 For the executive office of economic development to make grants to support the development and application of artificial intelligence technologies in strategically important sectors of the state's economy including but not limited to life sciences, healthcare, advanced manufacturing, climatetech, quantum, defense technology, transportation and robotics; provided that grants may be made from this item to public entities, non-profit entities and private businesses; and provided further, that grant funding may be administered by the Massachusetts Technology Park Corporation, the Massachusetts Life Sciences Center, the Massachusetts

33 Technology Development Corporation, or the Massachusetts Clean Energy Technology
 34 Center..... \$75,000,000

35 7002-8081 For the executive office of economic development to provide capital
 36 grants to support the construction, fit-out, and improvement of one or more sites where early
 37 stage and high growth business ventures are encouraged to establish operations in the
 38 Commonwealth; provided that the executive office may contract with the Massachusetts
 39 Development Finance Agency, or other state authority as defined in section 1 of chapter 29, to
 40 administer the grants or other financial assistance from this line item .
 41 \$20,000,000

42 7002-8082 For the executive office of economic development for investments in
 43 capital assets or public infrastructure that promote economic growth, job creation, and talent
 44 recruitment and retention in the defense sector, including to support innovation in defense-
 45 related technologies such as artificial intelligence, cybersecurity, robotics and autonomous
 46 systems, semiconductors and microelectronics, biosecurity, and advanced manufacturing;
 47 provided that grants from this line item may be made to public and private entities as determined
 48 by the executive office; and provided further that grant funding may be administered by the
 49 Massachusetts Technology Park Corporation, the Massachusetts Life Sciences Center, the
 50 Massachusetts Technology Development Corporation, the Massachusetts Development Finance
 51 Agency, and the Massachusetts Clean Energy Technology Center. \$100,000,000

52 7002-8084 For a competitive program to be administered by the Massachusetts
 53 Technology Park Corporation established in section 3 of chapter 40J of the General Laws to
 54 provide capital grants to support research and development of robotics technology including, but

55 not limited to, robotics incubation, testing, training, workforce development, research and
56 development and commercialization activities; provided, that grants may be made to nonprofit
57 entities, public or private universities or private business
58 entities.....\$25,000,000

59 7002-8085 For a grant program to cities, towns, regional organizations whose
60 membership is exclusively composed of municipal governments, municipal redevelopment
61 authorities or agencies or quasi-governmental agencies to support economic development in
62 Massachusetts, including, but not limited to, support for the vitality, activation, improvement,
63 and competitiveness of downtowns, main streets, business districts, town centers, commercial
64 corridors, cultural districts, and other walkable mixed-use areas; provided that the executive
65 office of economic development shall establish program requirements through regulations or
66 policy guidelines.....\$25,000,000

67 7002-8083 For the executive office of economic development to provide capital
68 grants to support food science, agricultural enterprises, resilient and sustainable food innovation,
69 food and agricultural technology, and related sectors; provided that the executive office may
70 contract with the Massachusetts Development Finance Agency, or other state authority as
71 defined in section 1 of chapter 29, to administer the grants from this
72 item.....\$10,000,000

73 7002-8086 For the executive office of economic development to provide capital
74 grants to enhance the arts, culture, and the creative economy in Massachusetts, including but not
75 limited to grants to cities and towns for public realm and streetscape improvements that enhance
76 downtown vibrancy, rehabilitation of historic districts, wayfinding and signage to support

77 cultural institutions, improvements to public gathering and performance spaces, and permanent
78 public art installations; provided that the executive office may contract with the Massachusetts
79 Development Finance Agency, or other state authority as defined in section 1 of chapter 29, to
80 administer the grants from this item.....\$25,000,000

81 SECTION 3. Subsection (b) of section 204 of chapter 6 of the General Laws, as
82 appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 20 to 21, the
83 words “but shall not serve for longer than 8 consecutive years”.

84 SECTION 4. Subsection (c) of section 16I of chapter 6A of the General Laws, as
85 appearing in the 2024 Official Edition, is hereby amended by striking out, in line 13, the words
86 “housing and”.

87 SECTION 5. Subsection (d) of said section 16I of said chapter 6A of the General Laws,
88 as so appearing, is hereby amended by striking out, in line 20, the word “community” and
89 inserting in place thereof the following word:- economic.

90 SECTION 6. Section 35FF of chapter 10 of the General Laws is hereby repealed.

91 SECTION 7. Subsection (b) of section 42 of chapter 23G of the General Laws, as
92 appearing in the 2024 Official Edition, is hereby amended by striking out the second and third
93 sentences of the definition of “Cultural facility” and inserting in place thereof the following
94 sentence:- The term cultural facility may include, but shall not be limited to, museums, historical
95 sites, zoos, aquariums, nature or science centers, theaters, concert halls, exhibition spaces,
96 classrooms and auditoriums suitable for presentation of performing or visual arts; provided that
97 municipally-owned buildings, structures or sites must have at least 50 per cent of their usable
98 floor area or outside space dedicated to such use to qualify.

SECTION 8. Subsection (b) of section 5 of chapter 23I of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 37, the word “3F” and inserting in place thereof the following word:- 3C.

SECTION 9. Said subsection (b) of said section 5 of said chapter 23I, as so appearing, is hereby further amended by adding the following 2 sentences:-

The decision by the center to certify or deny certification of a life sciences company and the decision to award or deny any incentives pursuant to subsections (c) or (d), including but not limited to the amount of such award, and any conditions or limitations on such authorization, shall be decisions that are in the sole discretion of the center. Such decision by the center shall be final and shall not be subject to administrative appeal or judicial review pursuant to chapter 30A or give rise to any other cause of action or legal or equitable claim or remedy.

SECTION 10. Said section 5 of said chapter 23I of the General Laws, as so appearing, is hereby amended by striking out subsection (d) and inserting in place thereof the following subsection:-

(d) (1) There shall be established a life sciences tax incentive program. The center, in consultation with the department, may authorize incentives, including incentives carried forward or refunded pursuant to subsections (m), (n) and (r) of section 6 of chapter 62, paragraph 17 of section 30 of chapter 63, the second time it appears, section 31M of said chapter 63, the second time it appears, paragraph 6 of subsection (f) of section 38 of said chapter 63, subsection (k) of section 38M of said chapter 63, section 38U of said chapter 63, section 38V of said chapter 63, section 38W of said chapter 63, section 38CC of said chapter 63, the second paragraph of subsection (c) of section 42B of said chapter 63 and subsection (xx) of section 6 of chapter 64H

in a cumulative amount, including the current year cost of incentives allowed in previous years, that shall not exceed \$40,000,000 annually. The center may authorize incentives to a life sciences company that spans multiple years if the total amount of incentives due to be taken in any single calendar year does not exceed the applicable cap. The center shall determine the amount and type of any such incentive to authorize and the schedule on which those incentives may be claimed. The center may, in consultation with the department, limit any incentive to a specific dollar amount or time duration or in any other manner deemed appropriate by the department; provided, however, that the department shall only allocate any such incentives among commonwealth certified life sciences companies pursuant to subsection (b) and shall award such tax incentives pursuant to subsection (c).

The center shall provide an estimate to the secretary of administration and finance of the tax cost of extending benefits to a proposed project before certification, as approved by the commissioner of revenue, based on reasonable projections of project activities and costs. Tax incentives shall not be available to a certified life sciences company unless expressly granted by the secretary of administration and finance in writing.

(2) When authorizing incentives pursuant to subsection (d), the center shall require the certified life sciences company to execute a written agreement setting forth the terms and conditions on which the tax credits may be claimed. Such written agreement shall set forth the company's permanent new or retained full time employees, commitments over 1 or more years, set forth a schedule on which the credits may be claimed and other such terms or conditions as the center may in its discretion require. Such agreement may also, at the center's discretion, limit or restrict the right of the certified life sciences company to carry unused tax credits forward to subsequent tax years.

SECTION 11. Subsection (e) of said section 5 of said chapter 23I, as so appearing, is hereby amended by striking out the first 2 paragraphs and inserting in place thereof the following 2 paragraphs:-

(1) Certification granted pursuant to subsection (b) shall be valid starting with the tax year in which certification is granted. Each certified life sciences company shall file an annual report with the center certifying whether the company has achieved the job commitments, met the specific targets established in the proposal pursuant to subclause (A) of clause (i) of subsection (b) and other material obligations or representations set forth in the written agreement pursuant to paragraph (2) of subsection (d).

(2) The certification of a life sciences company may be revoked by the center after an investigation and determination that representations made by the certified life sciences company in its certification proposal or written agreement pursuant to paragraph (2) of subsection (d) are materially at variance with the conduct of the life sciences company after receiving certification; provided, however, that the center shall review the certified life sciences company at least annually; provided, further, that the center shall have the discretion to determine whether the material variance shall result in revocation of a project certification, taking into account: (i) the conduct of the certified life sciences company subsequent to the project certification; (ii) the extent to which the material variance is the result of unforeseen conditions that are outside the control of the certified life sciences company; and (iii) other considerations as the center shall establish by policy. In the event the center revokes certification of a life sciences company, the center shall provide its reasons for the decision in writing to the secretary of administration and finance, the commissioner of revenue and the clerks of the house of representatives and the senate, who shall forward the same to the house and senate committees on ways and means, the

joint committee on revenue and the joint committee on economic development and emerging technologies. The center shall post these reasons on the internet for public access.

SECTION 12. Said subsection (e) of said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out paragraph (4) and inserting in place thereof the following 2 paragraphs:-

(4) In connection with an award of refundable jobs credits pursuant to subsection (r) of section 6 of chapter 62 or section 38CC of chapter 63, if the center finds that the certified life sciences company is in material variance with the terms of the written agreement entered into under subsection (d)(2) then the center may rescind tax credits awarded but not yet claimed, and request that the department recapture tax credits already claimed. The center shall have discretion to provide the company with reasonable opportunity to cure the material variance and rescind or recapture tax credits in proportion to the company's compliance, as determined by the center. Tax credits shall be rescinded or recaptured by sending a written notice to the certified life sciences company and the department. Where applicable, the department shall recapture tax credits in accordance with subsection (r) of section 6 of chapter 62 or section 38CC of chapter 63.

(5) Nothing in this subsection shall limit any legal remedies available to the commonwealth against any certified life sciences company.

SECTION 13. Subsection (f) of said section 5 of said chapter 23I of the General Laws, as so appearing, is hereby amended by striking out, in lines 149 to 150, the word "independent".

SECTION 14. Section 1 of chapter 23J of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of “Fund” and inserting in place thereof the following definition:-

"Fund", the Climatetech Investment Fund established in section 15 of chapter 23J.

SECTION 15. Said section 1 of said chapter 23J, as so appearing, is hereby further amended by striking out the definition of “Trust fund.”

SECTION 16. Section 2 of said chapter 23J, as so appearing, is hereby amended by striking out, in lines 13 to 15, inclusive, the words “, in collaboration with the Massachusetts Renewable Energy Trust Fund established in section 4E of chapter 40J,”.

SECTION 17. Said section 2 of said chapter 23J, as so appearing, is hereby further amended by striking out the second paragraph.

SECTION 18. Section 3 of said chapter 23J, as so appearing, is hereby amended by striking out, in lines 65 to 66, the words “Massachusetts Alternative and Clean Energy Investment Trust Fund” and inserting in place thereof the following word:- fund.

SECTION 19. Subsection (a) of said section 3 of said chapter 23J, as so appearing, is hereby amended by striking out paragraphs (26) and (31).

SECTION 20. Section 5 of said chapter 23J, as so appearing, is hereby amended by striking out, in lines 16 to 19, inclusive, the words “and the trust fund over the previous fiscal year, the ability of the fund to meet the requirements in section 35FF of chapter 10 and the ability of the trust fund to meet the requirements in section 9” and inserting in place thereof the

207 following words:- over the previous fiscal year, the ability of the fund to meet the requirements
208 in section 15.

209 SECTION 21. Section 9 of said chapter 23J of the General Laws is hereby repealed.

210 SECTION 22. Section 11 of said chapter 23J of the General Laws, as so appearing, is
211 hereby amended by striking out, in lines 2 to 3, the words “the fund and the trust fund” and
212 inserting in place thereof the following words:- any trust funds administered by the center under
213 this chapter.

214 SECTION 23. Subsection (a) of section 15 of said chapter 23J of the General Laws, as so
215 appearing, is hereby amended by striking out, in line 6, the words “and (iii)” and inserting in
216 place thereof the following words:- (iii) all amounts collected under section 20 of chapter 25; and
217 (iv).

218 SECTION 24. Subsection (b) of section 16 of said chapter 23J, so appearing, is hereby
219 amended by adding the following 2 sentences:- The decision by the center to certify or deny
220 certification of a climatetech company and the decision to award or deny any incentives pursuant
221 to subsection (d), including without limitation the amount of such award, and any conditions or
222 limitations on such authorization, shall be decisions that are in the sole discretion of the center.
223 Such decision by the center shall be final and shall not be subject to administrative appeal or
224 judicial review pursuant to chapter 30A or give rise to any other cause of action or legal or
225 equitable claim or remedy.

226 SECTION 25. Subsection (c) of said section 16 of said chapter 23J, as so appearing, is
227 hereby amended by striking out paragraph (1) and inserting in place thereof the following
228 paragraph:-

(1) Certification granted pursuant to subsection (b) shall be valid starting with the tax year in which certification is granted. Each certified climatetech company shall file an annual report with the center certifying whether the company has achieved the job commitments, met the specific targets established in the proposal pursuant to clause (i) of subsection (b) and, if not, detailing its progress towards those targets, and other material obligations or representations set forth in the written agreement pursuant to paragraph (3) of subsection (d).

SECTION 26. Paragraph (2) of said subsection (c) of said section 16 of said chapter 23J, as so appearing, is hereby amended by inserting, in line 56, after the word “proposal” the following words:- or written agreement pursuant to paragraph (3) of subsection (d).

SECTION 27. Said subsection (c) of said section 16 of said chapter 23J, as so appearing, is hereby further amended by striking out paragraph (3) and inserting in place thereof the following 2 paragraphs:-

(3) In connection with an award of refundable jobs credits pursuant to subsection (hh) of section 6 of chapter 62 or section 38TT of chapter 63, if the center finds the certified climatetech company is in material noncompliance with the terms of the written agreement entered into under paragraph (3) of subsection (d) then the center may rescind tax credits awarded but not yet claimed, and request that the department recapture tax credits already claimed. The center shall have discretion to provide the company with reasonable opportunity to cure the material noncompliance and rescind or recapture tax credits in proportion to the company’s compliance, as determined by the center. Tax credits shall be rescinded or recaptured by sending a written notice to the certified climatetech company and the department. Where applicable, the

department shall recapture tax credits in accordance with subsection (hh) of section 6 of chapter 62 or section 38TT of chapter 63.

(4) Nothing in this subsection shall limit any legal remedies available to the commonwealth against any certified climatetech company.

SECTION 28. Section (d) of said section 16 of said chapter 23J, as so appearing, is hereby amended by striking out paragraph (1) and inserting in place thereof the following paragraph:-

(1) The center, in consultation with the department of revenue, may authorize incentives, including those established in subsections (gg) and (hh) of section 6 of chapter 62, subsection (k) of section 38M of chapter 63, section 38RR of said chapter 63, section 38SS of said chapter 63, section 38TT of said chapter 63, the second paragraph of subsection (c) of section 42B of said chapter 63 and subsection (yy) of section 6 of chapter 64H, that shall not exceed \$30,000,000 annually. The center may authorize incentives to a climatetech company that spans multiple years if the total amount of incentives due to be taken in any single calendar year does not exceed the applicable cap. The center shall determine the amount and type of any such incentive to authorize and the schedule on which those incentives may be claimed. The center, in consultation with the department of revenue, may limit the incentives to a specific dollar amount or time duration or in any other manner deemed appropriate by the department of revenue; provided, however, that the department of revenue shall only allocate the incentives among certified climatetech companies.

SECTION 29. Said section (d) of said section 16 of said chapter 23J, as so appearing, is hereby further amended by adding the following paragraph:-

(3) When authorizing incentives pursuant to subsection (d), the center shall require the certified climatetech company to execute a written agreement setting forth the terms and conditions on which the tax credits may be claimed. Such written agreement shall set forth the company's permanent new or retained full time employees, commitments over one or more years, set forth a schedule on which the credits may be claimed and other such terms or conditions as the center may in its discretion require. Such agreement may also, at the center's discretion, limit or restrict the right of the certified climatetech company to carry unused tax credits forward to subsequent tax years.

SECTION 30. Said chapter 23J of the General Laws, as so appearing, is hereby amended by adding the following section:-

Section 17. (a) Unless stated otherwise, the terms used in this section shall have the meaning defined in section 1 of chapter 164.

(b) As used in this section, unless the context clearly indicates otherwise, "gridtech solution" shall mean novel technologies, novel applications of technologies, and other innovative approaches, including but not limited to, novel retail rate designs, distributed energy resource wiring configurations or customer energy solutions.

(c) There shall be a gridtech deployment advisory board. Such board shall be tasked with (i) exploring opportunities for public-private partnerships to test or deploy at scale gridtech, (ii) facilitating connections between gridtech companies and relevant distribution companies, and (iii) identifying and proposing solutions to barriers in the existing practices of an electric company, as defined in section 1 of chapter 164, or the department of public utilities, provided such solutions are permissible under state law. The advisory board shall prioritize, where

appropriate, the deployment of gridtech that reduce electric distribution and transmission grid costs and support achievement of the statewide greenhouse gas emissions limits and sublimits under chapter 21N.

(d) The board established pursuant to subsection (c) shall be comprised of the chief executive officer of the Massachusetts clean energy technology center, or their designee, the commissioner of the department of energy resources, or their designee, the chair of the department of public utilities, or their designee, the secretary of the executive office of economic development, or their designee, 1 of whom shall be a representative from the body established under chapter 40G, 1 of whom shall be a representative from each electric company, as defined by section 1 of chapter 64, 1 of whom shall be a representative from the Massachusetts Municipal Wholesale Electric Company, 1 of whom shall be a representative from a municipal electric distribution company or an organization that represents municipal electric distribution companies, and 3 of whom representatives from organizations involved or familiar with the development, financing or implementation of gridtech solutions. The board shall be co-chaired by the chief executive officer of the Massachusetts clean energy technology center, or their designee, and a member of an electric company serving on the advisory board. All representatives shall, unless otherwise provided, be appointed by the chief executive officer of the Massachusetts clean energy technology center.

(e) The electric companies shall file for review and approval with the department of public utilities any process approved by the board to review, on an expedited basis, requests for limited waivers of prior department orders that will alleviate gridtech deployment barriers.

(f) The department shall approve any process filed under subsection (d) if it determines that such process is in the public interest, including but not limited to reducing electric grid costs and supporting achievement of the statewide greenhouse gas emissions limits and sublimits under chapter 21N.

(g) Annually, the board shall identify barriers to the deployment of discrete gridtech technologies and applications in existing utility practices and orders issued by the department of public utilities, as well as potential solutions to those barriers and, as applicable, limited waivers of department orders to alleviate the identified barriers. The electric companies shall seek approval from the department of any limited waivers identified and approved by the board so long as they are consistent with the process approved by the department under subsection (f).

(h) Nothing in this section shall preclude members of the board from testing, funding or scaling gridtech solutions outside of the processes outlined in this section.

SECTION 31. Section 20 of chapter 25 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) The department shall require a mandatory charge of 0.5 mill per kilowatt-hour for all electricity consumers, except those served by a municipal lighting plant which does not supply generation service outside its own service territory or does not open its service territory to competition at the retail level. All revenues generated by the mandatory charge shall be deposited into and expended in a manner consistent with the requirements of the Climatetech Investment Fund, established under section 15 of chapter 23J.

SECTION 32. Subsection (b) of said section 20 of said chapter 25, as so appearing, is hereby amended by striking out, in line 22, the words “Massachusetts Renewable Energy Trust” and inserting in place thereof the following words:- Climatetech Investment Fund.

SECTION 33. Said subsection (b) of said section 20 of said chapter 25, as so appearing, is hereby further amended by inserting, in line 24, after the words “subsidy from” the following words:- revenues from mandatory charges held by.

SECTION 34. Said subsection (b) of said section 20 of said chapter 25, as so appearing, is hereby further amended by striking out, in line 28, the word “collaborative” and inserting in place thereof the following words:- Massachusetts clean energy technology center.

SECTION 35. Section 1A of chapter 40A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the definition of “As of right” the following definition:-

“Bulk and height of structures”, the articulation and roof lines of structures; provided, however, that performance standards governing bulk and height of structures may not be more restrictive than the dimensional requirements set forth in the ordinance or by-law, nor require specific building materials. Articulation, as used herein, refers to the following strategies to address building massing: wall offsets, height variation, wall setbacks, accent lines, stepbacks or such other industry standard types of articulation as may be proposed by the petitioner.

SECTION 36. Said section 1A of said chapter 40A, as so appearing, is hereby further amended by inserting after the definition of “Permit granting authority” the following definition:-

“Site plan review”, the review and approval process under a municipality’s zoning ordinance or by-law that establishes criteria for the layout, safety and impacts of a proposed use or development, and whether a proposed use of land or structures is in compliance with reasonable performance standards as defined in section 7A; provided, however, that site plan review, and the performance standards applicable thereto, in connection with any protected use pursuant to section 3 or any other section of this chapter shall be limited to the extent required by the provisions of such section.

SECTION 37. Said chapter 40A of the General Laws, as so appearing, is hereby amended by inserting after section 3B the following section:-

Section 3C. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:-

“Adaptive reuse”, the conversion of an existing structure from the use for which it was constructed to multi-family housing or mixed-use development by maintaining the elements of the structure and adapting such elements to the new use.

“Bus station”, a location serving as a point of embarkation for any bus operated by a transit authority, including the Massachusetts Bay Transportation Authority Silver Line.

“Board of appeals”, a municipal zoning board of appeals established pursuant to section 12.

“Commuter rail station”, Any commuter rail station operated by a transit authority with year-round service with trains departing at regular time intervals, rather than intermittent, seasonal or event-based service.

“Commercial conversion”, the use of land or structures for the creation and operation of any of the following: (i) adaptive reuse, (ii) new construction of multi-family housing and (iii) new construction of mixed-use development.

“Commercial use”, the use of land or structures for non-residential uses including, but not limited to offices, retail, dining establishments and other similar uses as may be provided through regulation by the executive office in consultation with the executive office of economic development.

“Commercially zoned lot”, a lot where zoning allows commercial use as-of-right or by special permit.

“Executive office”, the executive office of housing and livable communities.

“Ferry terminal”, the location where passengers embark and disembark from a ferry service with year-round service with ferries departing at regular time intervals, rather than intermittent, seasonal or event-based service.

“Financially infeasible”, to add unreasonable costs or unreasonably diminish the economic feasibility of a commercial conversion by means of a condition or requirement imposed by the board of appeals.

“Local board”, any local board or official including, but not limited to, any board of survey; board of health; board of subdivision control appeals; planning board; conservation commission; historical commission; water, sewer or other commission or district; fire, police, traffic or other department; building inspector or similar official or board; city council or selectboard; all boards, regardless of their geographical jurisdiction or their source of authority,

including boards established pursuant to any special law or general law, shall be a local board if they perform functions usually performed by locally created boards.

“Local contribution”, an incentive provided by a city or town for commercial conversion on a commercially zoned lot under subsection (c).

“Subway station”, any of the stops along the rapid transit system of a transit authority, including the Massachusetts Bay Transportation Authority red line, green line, orange line or blue line, including any extensions or additions to such lines.

“Transit authority”, the Massachusetts Bay Transportation Authority established by section 2 of chapter 161A, or any other local or regional transit authority established pursuant to section 3 of chapter 161B or section 14 of said chapter 161B.

“Transit station”, a subway station, commuter rail station, ferry terminal or bus station.

(b)(1) A city or town subject to this chapter, may, pursuant to section 5, amend zoning to allow commercial conversion as of right on every commercially zoned lot; provided, that a city or town that adopts as of right zoning under this section shall provide not less than 1 adaptive reuse incentive pursuant to subsection (c); and provided further, that as of right zoning established pursuant to this section shall provide at a minimum, but not be limited to, the following:

(i) For adaptive reuse, allow existing building setbacks to remain and be considered legal nonconforming pursuant to section 6 of chapter 40A; provided, however, that a municipality may prohibit any additional encroachments into any nonconforming setback, unless otherwise required pursuant to clause (ii) or otherwise allowed under zoning;

(ii) For adaptive reuse, allow such development to exceed the existing footprint of the building to accommodate upgrades related to building code, fire code and utility requirements;

(iii) For adaptive reuse, allow such development to exceed the maximum height of the existing zoning district if the structure in existence prior to the adaptive reuse exceeds the maximum height of the existing zoning district;

(iv) Adaptive reuse for multi-family housing, new multi-family housing and new-construction of mixed-use developments shall be exempt from residential parking requirements that exceed 1 parking space per residential dwelling unit; provided, that such commercial conversion projects on lots that are partially or entirely located within a 0.5 mile radius of a transit station shall be exempt from any residential parking requirements;

(v) A city or town may require that adequate infrastructure, including roads, water and sewage systems, shall be available or provided to support commercial conversion;

(vi) A city or town may restrict development on lots where industrial and manufacturing uses are permitted and where such uses have a substantial and demonstrable likelihood of resulting in impacts that are incompatible with residential use, such as air, noise or odor;

(vii) A city or town may impose affordable housing requirements on commercial conversion through an inclusionary zoning ordinance or bylaw to the extent that such affordable housing requirement does not require more than 10 per cent of the residential units within a commercial conversion to be subject to such affordable housing requirement and such requirement does not limit eligibility to households earning not more than 80 per cent area median income; provided, that the executive office, in its discretion, may approve a greater percentage of affordable units or deeper affordability requirements for some or all of the

affordable units upon request by a city or town as to an individual project in a form as may be designated by the executive office.

(viii) Notwithstanding any special or general law, rule or regulation to the contrary, a commercial conversion that is adaptive reuse under this section shall comply with the base energy code pursuant to the state building code, 780 CMR, and shall not be required to comply with the specialized stretch energy code established pursuant to section 6 of chapter 25A or the municipal opt-in specialized stretch energy code established pursuant to said section 6 of said chapter 25A.

(2) Notwithstanding sections 5, 8 and 9, a city or town that has adopted zoning pursuant to paragraph (1) of subsection (b) may establish a streamlined process for a petitioner or applicant seeking commercial conversion of a commercially zoned lot to submit to the board of appeals a single application for approval of a commercial conversion in lieu of separate applications to the applicable local boards. Such process shall provide, at a minimum, but not be limited to, the following:

(i) The board of appeals shall notify each local board, as applicable, of the filing of an application under this paragraph by sending a copy thereof to such local boards for their recommendations and shall, within 30 days of the receipt of the application, hold a public hearing in conformance with section 11;

(ii) The board of appeals shall request representatives of local boards as are deemed necessary or helpful in making its decision upon an application to attend the hearing and shall, notwithstanding section 7, have the same power to issue permits or approvals as any local board or official who would otherwise act with respect to such application, including but not limited to

463 the power to attach to said permit or approval conditions and requirements that are not
464 financially infeasible;

465 (iii) The board of appeals, in making its decision on an application, shall take into
466 consideration the recommendations of the local boards and shall have the authority to use the
467 testimony of consultants;

468 (iv) The board of appeals shall render a decision, based upon a majority vote of said
469 board, within 60 days of receiving an application; and

470 (v) If a hearing is not convened or a decision is not rendered within the time allowed
471 under clause (iv), unless the time has been extended by mutual agreement between the board of
472 appeals and the applicant, the application shall be deemed to have been allowed and the permit
473 or approval shall issue.

474 (c) A city or town that adopts zoning pursuant to this section may provide any of the
475 following local contributions: (i) a tax increment exemption for adaptive reuse pursuant to
476 section 5P of chapter 59; (ii) a preference for commercial conversion projects for assistance
477 under a community preservation fund established pursuant to section 7 of chapter 44B; (iii) a
478 preference for commercial conversion projects for assistance under a municipal affordable
479 housing trust fund established pursuant to section 55C of chapter 44; (iv) adoption of a
480 streamlined approval process pursuant to subparagraph (2) of subsection (b); or (v) any other
481 local contributions as determined by the executive office.

482 (d) The executive office may establish additional incentives for cities and towns that
483 adopt zoning and a local contribution pursuant to this section. Such incentives for cities and
484 towns may include, but not be limited to, a preference for financial assistance pursuant to section

27 ½ of chapter 23B, a preference for tax credits authorized pursuant to subsection (ee) of section 6 of chapter 62 and section 38OO of chapter 63 and other incentives identified by the executive office in consultation with the executive office of economic development and the executive office for administration and finance.

(e) The executive office may, in consultation with the executive office of economic development, promulgate regulations for the implementation and administration of this section.

(f) A city or town that has adopted zoning pursuant to paragraph (1) of subsection (b) above may repeal such adoption pursuant to section 5.

SECTION 38. Section 5 of said chapter 40A, as so appearing, is hereby amended by inserting after the word “appeals,” in line 6, the following words:- a mayor,.

SECTION 39. Said section 5 of said chapter 40A, as so appearing, is hereby further amended by striking out, in line 92, the words “or (c) open-space residential development;” and inserting in place thereof the following words:- (c) open-space residential development; or (d) commercial conversion pursuant to section 3C.

SECTION 40. Section 6 of said chapter 40A, as so appearing, is hereby amended by inserting, in line 13, after the words “except where alteration, reconstruction, extension or structural change to” the following words:- a structure used for commercial conversion pursuant to section 3C, to the extent allowed by that section or.

SECTION 41. Said section 6 of said chapter 40A, as so appearing, is hereby further amended by inserting, in line 38, after the word “permit,” the following words:-“Construction or operations under a special permit issued pursuant to section 9 or site plan approval pursuant to

506 the local ordinance or by-law shall conform to any subsequent amendment of the zoning
507 ordinance or by-law or of any other local land use regulations unless the use or construction is
508 commenced within a period of 3 years after the issuance of the special permit or site plan
509 approval and” and inserting in place thereof the following words:- Construction or operations
510 under a special permit issued pursuant to section 9 or site plan approval pursuant to the local
511 ordinance or by-law or a permit for commercial conversion issued pursuant to section 3C shall
512 conform to any subsequent amendment of the zoning ordinance or by-law or of any other local
513 land use regulations unless the use or construction is commenced within a period of 3 years after
514 the issuance of the special permit, permit for commercial conversion.

515 SECTION 42. Said chapter 40A of the General Laws is hereby further amended by
516 adding the following section:–

517 Section 7A. (a) As used in this section, the following words shall have the following
518 meanings:

519 “Designated authority” shall mean the local municipal board, committee or officials
520 designated in the zoning ordinance or by-law to conduct site plan review.

521 “Performance standards” shall mean reasonable, written municipal zoning regulations,
522 published industry standards and best practices, applicable to site plans and relative to traffic
523 circulation and safety, pedestrian safety and access, off-street parking and loading, emergency
524 vehicle access, stormwater drainage, screening, bulk and height of structures, exterior lighting
525 and storage or other outdoor service areas.

526 (b) Substantive provisions of site plan review, including content of submittal
527 requirements and applicable performance standards, governing site plan review and approval by

the designated authority or authorities must be as set forth within a local ordinance or by-law adopted pursuant to section 5. Performance standards must be reasonably definite and objective so that any petitioner has knowledge of such standards prior to application submittal. No zoning by-law or ordinance may include performance standards governing the aesthetics of structures. The designated authority may, where such action is in the public interest and not inconsistent with the intent and purpose of this section, waive strict compliance with the performance standards for site plan review. The designated authority may adopt, and from time to time amend, written procedural rules and regulations to implement the local site plan review ordinance or by-law, including provisions for the imposition of reasonable fees for the employment of outside consultants in the same manner as set forth in section 53G of chapter 44.

(c) A zoning ordinance or by-law may establish applicability standards for projects that are subject to site plan review, which may include a category of projects that are subject to a minor or administrative site plan review process. The zoning ordinance or by-law may require a public hearing in accordance with section 11 for projects that meet or exceed specified thresholds under the zoning ordinance or by-law. The decision of the designated authority for a use allowed as of right, or for a use requiring a special permit but reviewed by a separate designated authority, shall require a simple majority vote of the designated authority and shall be made within the time limits prescribed by ordinance or by-law, not to exceed 90 days from the date of filing of a complete application or such extended time as may be agreed in writing by the petitioner. The submission and review process for a site plan required in connection with the issuance of a special permit, and subject to review by the same permit granting authority as the special permit application, shall be conducted with the review of the special permit application in a coordinated process and may require the same quantum of vote required for approval of a

551 special permit. The ordinance or by-law may establish the designated authority to be the building
552 commissioner, director of planning or other municipal official who coordinates administrative
553 site plan review with other municipal employees, in which instance there shall be no vote
554 requirement for site plan review. Any appeal from administrative site plan review shall be in
555 accordance with section 17 unless an ordinance or by-law first provides for an appeal to another
556 public body of the municipality. In no instance shall the issuance or denial of a building permit
557 be a prerequisite to the filing of a civil action under this section.

558 (d) Site plan review may impose only those conditions that are necessary to ensure
559 substantial compliance of the proposed use of land or structures with the requirements of the
560 zoning ordinance or by-law; provided that no condition may impose restrictions greater than
561 those expressly regulated within the zoning ordinance or by-law and no conditions may be
562 imposed regarding matters over which jurisdiction exclusively lies in another body pursuant to
563 any general or special law; and provided further, that any off-site conditions shall only address
564 direct adverse impacts related to performance standards expressly governed by the zoning
565 ordinance or by-law and which conditions are proportionate in both nature and extent to the
566 impacts of the project on adjacent properties or adjacent roadways.

567 (e) A site plan application may be denied only on the grounds that: (i) the proposed site
568 plan does not meet the specific requirements set forth in the zoning ordinance or by-law; or (ii)
569 the petitioner failed to submit the information and fees required by the zoning ordinance or by-
570 law necessary for an adequate and timely review of the design of the proposed land or structures.

571 (f) The designated authority shall cause to be made a detailed record of its proceedings,
572 indicating the vote of each member upon each question, or if absent or failing to vote, indicating

such fact, and setting forth clearly the reason for its decision and of its official actions, copies of all of which shall be filed within 14 days in the office of the city or town clerk and shall be deemed a public record, and notice of the decision shall be mailed forthwith to the petitioner and, if such site plan review required a public hearing pursuant to the zoning ordinance or by-law, to the parties in interest designated in section 11. Each such notice shall specify that appeals, if any, shall be made pursuant to section 17 and shall be filed within 20 days after the date of filing of such notice in the office of the city or town clerk. Failure by the designated authority to take final action within said 90 days or extended time, if applicable, shall be deemed to be an approval of the site plan. The petitioner who seeks such approval by reason of the failure of the designated authority to act within such time prescribed, shall notify the city or town clerk, in writing within 14 days from the expiration of said 90 days or extended time, if applicable, of such approval. If site plan review required a public hearing, the petitioner shall send such notice to parties in interest designated in section 11 by mail and each such notice shall specify that appeals, if any, shall be made pursuant to section 17 and shall be filed within 20 days after the date the city or town clerk received such written notice from the petitioner that the designated authority failed to act within the time prescribed. After the expiration of 20 days without notice of appeal pursuant to section 17, or, if appeal has been taken, after receipt of certified records of the court in which such appeal is adjudicated, indicating that such approval has become final, the city or town clerk shall issue a certificate stating the date of approval, the fact that the designated authority failed to take final action and that the approval resulting from such failure has become final, and such certificate shall be forwarded to the petitioner.

(g) A site plan approval granted under this section shall lapse within a specified period of time, not less than 3 years from the date of the filing of such approval with the city or town clerk,

if substantial use or construction has not yet begun, except as extended for good cause by the designated authority. Such specified period shall not include time required to pursue or await the determination of an appeal under section 17 or to pursue or await the appeal of any other permit, license, determination or approval which are prerequisites to issuance of a building permit. The aforesaid minimum period of 3 years may, by ordinance or by-law, be increased to a longer period.

SECTION 43. Section 14 of said chapter 40A, as so appearing, is hereby amended by inserting after clause (4) the following clause:- (5) to hear and decide applications for commercial conversion upon which the board is empowered to act pursuant to paragraph (2) of subsection (b) of section 3C.

SECTION 44. Section 15 of said chapter 40A, as so appearing, is hereby amended by striking out the words “The board of appeals shall hold a hearing on any appeal, application or petition within sixty-five” and inserting in place thereof the following words:- Except as provided under clause (i) of paragraph (2) of subsection (b) of section 3C, the board of appeals shall hold a hearing on any appeal, application or petition within 65.

SECTION 45. Said section 15 of said chapter 40A, as so appearing, is hereby further amended by inserting, after the words, in lines 50 to 51, “except in regard to” the following words:- permits for commercial conversion, as provided for in clause (iv) of paragraph (2) of subsection (b) of section 3C and in regard to.

SECTION 46. Section 4 of chapter 40G of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out subsection (8) and inserting in place thereof the following subsection:-

618 (8) the enterprise will report adequate financial data to the MTDC, and provide MDTC
619 with sufficient control over the management of the enterprise, so as to protect the investment of
620 the MTDC, including, in the discretion of the board, right of access to financial and other records
621 of the enterprise.

622 SECTION 47. Said section 4 of said chapter 40G, as so appearing, is hereby further
623 amended by striking out, in line 68, the words “(1) Not more than \$1,000,000” and inserting in
624 place thereof the following words:- Not more than \$2,000,000.

625 SECTION 48. Said section 4 of said chapter 40G, as so appearing, is hereby further
626 amended by striking out, in line 69, the figure “\$2,000,000” and inserting in place thereof the
627 following figure:- \$4,000,000.

628 SECTION 49. Said section 4 of said chapter 40G, as so appearing, is hereby further
629 amended by striking out, in lines 82 to 94, inclusive, subsection (2).

630 SECTION 50. Section 6 of said chapter 40G, as so appearing, is hereby amended by
631 striking out, in line 2, the word “ninety,” and inserting in place thereof the following words:-
632 120.

633 SECTION 51. Said section 6 of said chapter 40G, as so appearing, is hereby further
634 amended by striking out, in lines 5 to 7, inclusive, the words “and the number of persons hired as
635 a result of the activities of the corporation who were recipients of programs provided for in
636 chapter 115, 117A, or 118”.

SECTION 52. Chapter 40J of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out section 3 and inserting in place thereof the following section:-

Section 3. There is hereby created a body, politic and corporate, to be known as the Massachusetts Technology Park Corporation hereinafter referred to as the corporation. The corporation is hereby constituted a public instrumentality of the commonwealth and the exercise by the corporation of the powers conferred in this chapter shall be deemed and held to be an essential governmental function. The corporation is hereby placed in the executive office of economic development but shall not be subject to the supervision or control of said department or of any board, bureau, department or other agency of the commonwealth except as specifically provided in this chapter.

The corporation shall be governed and its corporate powers exercised by a board of directors, which shall consist of the secretary of economic development or a designee, the secretary of administration and finance or a designee and the commissioner of higher education or a designee and 15 persons to be appointed by the governor, 2 of whom shall be appointed from a list of persons nominated by the president of the senate, 2 of whom shall be appointed from a list of persons nominated by the speaker of the house of representatives, 2 of whom shall be chief executive officers of post-secondary educational institutions or distinguished members of the engineering or scientific faculties of those institutions, or members of other appropriate faculties, and of those 2, at least 1 shall represent a public post-secondary educational institution, and 6 of whom shall represent businesses concerned with any technology which may be subject to this chapter, and 2 of whom shall be recommended by the Massachusetts AFL-CIO. Each director appointed from the list of nominations recommended by the president of the senate and

the speaker of the house of representatives shall serve a term of 2 years to be coterminous with the legislative session of the general court. Each director appointed by the governor shall serve for a term of 5 years and thereafter until the director's successor is appointed. A person appointed to fill a vacancy on the board shall be appointed in a like manner and shall serve for the unexpired term of the predecessor director. A director shall be eligible for reappointment. A director may be removed by the governor for cause. 9 directors shall constitute a quorum and the affirmative vote of a majority of the directors present and eligible to vote at a meeting shall be necessary for any action to be taken by the board. The directors shall serve without compensation, but each director shall be entitled to reimbursement for actual and necessary expenses incurred in the performance of official duties. The board shall meet at least 4 times each year and shall have final authority over the activities of the corporation.

The secretary of economic development or a designee shall serve as chairperson. The board shall biennially elect from among its members a vice-chairperson and may designate a treasurer and a secretary, who need not be members of the board. The secretary shall keep a record of the proceedings of the corporation and shall be the custodian of all books, documents and papers filed with the corporation and its official seal. The secretary shall cause copies to be made of all minutes and other records and documents of the corporation and shall certify that such copies are true copies and all persons dealing with the corporation may rely upon such certification. The treasurer shall be the chief financial and accounting officer of the corporation and shall be in charge of its funds, books of account and accounting records.

The executive committee of the board shall consist of the chairperson and the vice-chairperson, and not less than 3 individuals elected biennially by the board from among its members, 1 of whom shall be a board member representing a post-secondary educational

683 institution and 1 of whom shall be a board member from a business. The executive committee
684 shall have all the powers of the board between meetings of the board, to be exercised in
685 accordance with by-laws established by the board. The executive committee shall meet as often
686 as considered necessary by the committee.

687 Any action required or permitted to be taken at a meeting of the directors may be taken
688 without a meeting if all of the directors consent in writing to such action and such written
689 consent is filed with the records of the minutes of the meetings of the board. Such consent shall
690 be treated for all purposes as a vote at a meeting.

691 The provisions of chapter 268A shall apply to all directors, officers and employees of the
692 corporation except that the corporation may purchase from, sell to, borrow from, contract with or
693 otherwise deal with any organization in which any director of the corporation is in any way
694 interested or involved; provided, however, that such interest or involvement is disclosed in
695 advance to the directors and recorded in the minutes of the proceedings of the corporation; and
696 provided, further, that no director having such an interest or involvement may participate in any
697 decision relating to such organization.

698 Neither the corporation nor any of its officers, directors, agents, employees, consultants
699 or advisors shall be subject to the provisions of sections 3B of chapter 7, sections 9A, 45, 46 and
700 52 of chapter 30, chapter 31, or sections 27 and 27A to 27E, inclusive, of chapter 149; provided,
701 however, that in purchasing products or services, the corporation shall at all times follow
702 generally accepted good business practices.

703 All officers and employees of the corporation having access to its cash or negotiable
704 securities shall give bond to the corporation at its expense, in such amount and with such surety

705 as the board may prescribe. The persons required to give bond may be included in 1 or more
706 blanket or scheduled bonds.

707 Directors and officers who are not regular, compensated employees of the corporation
708 shall not be liable to the commonwealth, to the corporation or to any other person as a result of
709 their activities, whether ministerial or discretionary, as such directors or officers except for
710 willful dishonesty or intentional violations of law. The board of the corporation may purchase
711 liability insurance for directors, officers and employees and may indemnify said persons against
712 the claims of others.

713 SECTION 53. Section 56 of chapter 41 of the General Laws, as appearing in the 2024
714 Official Edition, is hereby amended by striking out the last sentence and inserting in place
715 thereof the following sentence:-

716 This section shall not prohibit payment to be made for: (i) school travel prior to the date
717 of travel; (ii) the payment of software licenses, software maintenance agreements or online
718 subscription services for school curriculum prior to the fiscal year in which services shall be
719 rendered; or (iii) the payment of estimates issued by utilities for make-ready work to facilitate
720 access to utility poles, conduits, ducts or rights-of way related to broadband infrastructure
721 projects.

722 SECTION 54. Subsection (b) of section 5 of chapter 44B of the General Laws, as
723 appearing in the 2024 Official Edition, is hereby amended by inserting, in paragraph (2), after the
724 word “sites”, the following words:- , and may recommend a preference for projects developed
725 under zoning adopted pursuant to section 3C of chapter 40A.

SECTION 55. Chapter 59 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after section 50 the following section:-

Section 5P. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:-

“Adaptive reuse”, as defined in section 3C of chapter 40A.

“Zoning”, as defined in section 1A of chapter 40A.

(b) A city or town that adopts zoning pursuant to section 3C of chapter 40A, may adopt a tax increment exemption for an adaptive reuse project allowed as of right under such zoning. The exemption amount shall not be less than 10 per cent and not more than 100 per cent of the incremental value attributable to the residential portion of an adaptive reuse project allowed as of right under zoning established pursuant to said section 3C of said chapter 40A for a period of not less than 5 years and not more than 20 years. The legislative body of the city or town shall establish the percentage and term of the exemption, subject to the charter of the city or town and the approval of the executive office of housing and livable communities.

(c) The executive office of housing and livable communities may promulgate regulations for the administration of this section.

SECTION 56. Subsection (r) of section 6 of chapter 62 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out paragraph (1) and inserting in place thereof the following paragraph:-

(1) A taxpayer, to the extent authorized by the life sciences tax incentive program established in section 5 of chapter 23I, may be allowed a refundable jobs credit against the tax

liability imposed under this chapter in an amount and schedule determined by the Massachusetts Life Sciences Center in consultation with the department. The credit allowed under this section shall be taken only after the taxpayer executes a contract under paragraph (2) of subsection (d) of section 5 of chapter 23I.

SECTION 57. Paragraph (2) of said subsection (r) of said section 6 of said chapter 62, as so appearing, is hereby amended by striking out, in line 920, the figure “50” and inserting in place thereof the following figure:- 25.

SECTION 58. Said subsection (r) of said section 6 of said chapter 62, as so appearing, is hereby further amended by adding the following 2 paragraphs:-

(5) If the Massachusetts Life Sciences Center revokes the certification of a life sciences company under paragraph (4) of subsection (e) of section 5 of chapter 23I, a portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to the date on which the Massachusetts Life Sciences Center makes the determination to revoke the life sciences company’s certification shall be added back as additional tax due and shall be reported as such on the return of the taxpayer for the taxable period in which the determination to revoke the certification is made. The amount of credits subject to recapture shall be proportionate to the life science company’s compliance, as determined by the Massachusetts Life Sciences Center as part of its revocation process and reported to the corporation and the department at the time certification is revoked.

(6) Nothing in this subsection shall limit the authority of the commissioner to make an adjustment to a taxpayer’s liability upon audit.

SECTION 59. Paragraph (2) of subsection (gg) of section 6 of chapter 62, as so appearing, is hereby amended by inserting, in line 1687, after the word “facility” the following words:- in the case of an owner, and not more than 50 per cent of the owner and tenant’s combined total capital investment in a climatetech facility in the case of a tenant.

SECTION 60. Paragraph (4) of said subsection (gg) of said section 6 of said chapter 62, as so appearing, is hereby amended by striking out, in line 1702, the words “has made a” and inserting in place thereof the following words:- and tenant have made a combined.

SECTION 61. Subsection (hh) of section 6 of said chapter 62, as so appearing, is hereby amended by striking out paragraph (1) and inserting in place thereof the following paragraph:-

(1) A taxpayer, to the extent authorized by the climatetech tax incentive program established in section 16 of chapter 23J, may be allowed a refundable jobs credit against the tax liability imposed under this chapter in an amount and schedule determined by the Massachusetts clean energy technology center established in section 2 of said chapter 23J, in consultation with the department of revenue. The credit allowed under this section shall be taken only after the taxpayer executes a contract under paragraph (3) of subsection (d) of section 16 of chapter 23J.

SECTION 62. Said subsection (hh) of said section 6 of said chapter 62, as so appearing, is hereby further amended by adding the following two paragraphs:-

(6) If the Massachusetts clean energy technology center revokes the certification of a climatetech company under paragraph (2) of subsection (c) of section 16 of chapter 23J, a portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to the date on which the Massachusetts clean energy technology makes the determination to revoke the climatetech company’s certification shall be added back as additional tax due and shall be

790 reported as such on the return of the taxpayer for the taxable period in which the determination to
791 revoke the certification is made. The amount of credits subject to recapture shall be proportionate
792 to the climatetech company's compliance, as determined by the Massachusetts clean energy
793 technology center as part of its revocation process and reported to the corporation and the
794 department at the time certification is revoked.

795 (7) Nothing in this subsection shall limit the authority of the commissioner to make an
796 adjustment to a taxpayer's liability upon audit.

797 SECTION 63. Paragraph (1) of subsection (b) of section 6J of said chapter 62, as
798 amended by sections 18 and 19 of chapter 150 of the acts of 2024, is hereby further amended by
799 inserting in clause (i), after the words "such criteria", the second time they appear, the following
800 words:- , and there shall be a preference for projects that are adaptive reuse allowed as-of-right
801 in commercially zoned districts pursuant to section 3C of chapter 40A;.

802 SECTION 64. Subsection (b) of section 21 of chapter 62C of the General Laws, as
803 appearing in the 2024 Official Edition, is hereby amended by inserting the following 3
804 paragraphs:-

805 (32) the disclosure to the life sciences center established in section 3 of chapter 23I of
806 return and wage reporting information of a life sciences company certified pursuant to subsection
807 (b) of section 5 of chapter 23I, that is: (i) received by the commissioner pursuant to this chapter
808 or chapter 62E; and (ii) necessary for the administration of the life sciences tax incentive
809 program authorized by subsection (d) of section 5 of chapter 23I.

810 (33) the disclosure to the clean energy technology center established in section 2 of
811 chapter 23J of return and wage reporting information of a climatetech company certified

pursuant to subsection (b) of section 16 of chapter 23J, that is: (i) received by the commissioner pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of the climatetech tax incentive program authorized by subsection (d)(1) of section 16 of chapter 23J.

(34) the disclosure to the clean energy technology center established in section 2 of chapter 23J of return and wage reporting information of an offshore wind company certified pursuant to subsection (b) of section 8A of chapter 23J, that is: (i) received by the commissioner pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of the offshore wind tax incentive program authorized by subsection (d) of section 8A of chapter 23J.

SECTION 65. Paragraph (1) of subsection (b) of section 38R of chapter 63 of the General Laws, as amended by sections 23 and 24 of chapter 150 of the acts of 2024, is hereby further amended by inserting in clause (i), after the words “the criteria”, the third time they appear, the following words:- , and there shall be a preference for projects that are adaptive reuse allowed as-of-right in commercially zoned districts pursuant to section 3C of chapter 40A;.

SECTION 66. Subsection (b) of section 38U of said chapter 63 of the General Laws, as so appearing, is hereby amended by striking out, in lines 51 to 52, the words “neither credit allowed by section 31A nor section 31H is taken” and inserting in place thereof the following words:- the credit allowed by section 31H is not taken.

SECTION 67. Section 38CC of said chapter 63 of the General Laws, as so appearing is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) A taxpayer, to the extent authorized by the life sciences tax incentive program established in section 5 of chapter 23I, may be allowed a refundable jobs credit against the tax

liability imposed under this chapter in an amount and schedule determined by the Massachusetts Life Sciences Center in consultation with the department. The credit allowed under this section shall be taken only after the taxpayer executes a contract under paragraph (2) of subsection (d) of section 5 of chapter 23I.

SECTION 68. Subsection (b) of said section 38CC of said chapter 63, as so appearing, is hereby amended by striking out, in line 7, the figure “50” and inserting in place thereof the following figure:- 25.

SECTION 69. Subsection (c) of said section 38CC of said chapter 63, as so appearing, is hereby amended by adding the following sentence:- If the taxpayer is subject to a minimum excise under this chapter, the amount of the credit allowed by this section shall not reduce the excise to an amount less than the minimum excise.

SECTION 70. Subsection (d) of said section 38CC of said chapter 63, as so appearing, is hereby amended by striking out, in line 20, the figure “\$30,000,000” and inserting in place thereof the following figure:- \$40,000,000.

SECTION 71. Said section 38CC of said chapter 63 of the General Laws, as so appearing, is hereby further amended by adding the following 2 subsections:-

(e) If the Massachusetts Life Sciences Center revokes the certification of a life sciences company under paragraph (4) of subsection (e) of section 5 of chapter 23I, a portion of the tax credit otherwise allowed by this section and claimed by the company prior to the date on which the Massachusetts Life Sciences Center makes the determination to revoke its certification shall be added back as additional tax due and shall be reported as such on the return of the taxpayer for the taxable period in which the determination to revoke the certification is made. The amount

of credits subject to recapture shall be proportionate to the company's compliance, as determined by the Massachusetts Life Sciences Center as part of its revocation process and reported to the corporation and the department at the time certification is revoked.

(f) Nothing in this section shall limit the authority of the commissioner of revenue to make an adjustment to a corporation's liability upon audit.

SECTION 72. Subsection (b) of section 38RR of said chapter 63, as so appearing, is hereby amended by inserting, in line 29, after the words "climatetech facility" the following words:- in the case of an owner, and not more than 50 per cent of the owner and tenant's combined total capital investment in a climatetech facility in the case of a tenant.

SECTION 73. Subsection (d) of said section 38RR of said chapter 63, as so appearing, is hereby further amended by striking out, in lines 44 to 45, the words "owner's total capital investment in the facility equals" and inserting in place thereof the following words:- owner and tenant have made a combined total capital investment in the facility that is.

SECTION 74. Section 38TT of said chapter 63, as so appearing, is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) A taxpayer, to the extent authorized by the climatetech tax incentive program established in subsection (d) of section 16 of chapter 23J, may be allowed a refundable jobs credit against the tax liability imposed under this chapter in an amount and schedule determined by the Massachusetts clean energy technology center established in section 2 of said chapter 23J, in consultation with the department of revenue. The credit allowed under this section shall be taken only after the taxpayer executes a contract under paragraph (3) of subsection (d) of section 16 of chapter 23J.

SECTION 75. Said section 38TT of said chapter 63, as so appearing, is hereby further amended by adding the following 2 subsections:-

(e) If the Massachusetts clean energy technology center revokes the certification of a climatetech company under paragraph (2) of subsection (c) of section 16 of chapter 23J, a portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to the date on which the Massachusetts clean energy technology makes the determination to revoke the climatetech company's certification shall be added back as additional tax due and shall be reported as such on the return of the taxpayer for the taxable period in which the determination to revoke the certification is made. The amount of credits subject to recapture shall be proportionate to the climatetech company's compliance, as determined by the Massachusetts clean energy technology center as part of its revocation process and reported to the corporation and the department at the time certification is revoked.

(f) Nothing in this section shall limit the authority of the commissioner of revenue to make an adjustment to a corporation's liability upon audit.

SECTION 76. Subsection (qq) of section 6 of chapter 64H of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the first sentence and inserting in place thereof the following sentence:-

Sales of gas, steam, electricity or heating fuel for use by any business that has 10 or fewer employees that had gross income of less than \$2,000,000 for the preceding calendar year, and that reasonably expects gross income of less than \$2,000,000 for the current calendar year.

SECTION 77. Section 2 of chapter 70B of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 46 to 47, the words “and which meet the purposes of subsection (c) of section 9 of chapter 23J”.

SECTION 78. Section 75 of chapter 112 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following paragraph:-

Notwithstanding any general or special law to the contrary, the board, upon the recommendation of the executive director or their designee, shall waive any requirement to complete an exam exclusively verifying proficiency in English if the applicant: (i) previously passed an English proficiency examination at any time; (ii) has obtained one or more nursing degrees in the United States, if the applicant was originally trained outside of the United States; or (iii) demonstrates English proficiency through another method deemed acceptable by the board. Nothing in this paragraph shall be construed to impede the board's authority to establish or conduct examinations which test the applicant's fitness to practice or to promulgate rules, regulations or guidelines pursuant to section 79. The board may not waive requirements for an exam verifying proficiency in English for applicants seeking licensure via the Nurse Licensure Compact pursuant to chapter 112A.

SECTION 79. Section 222 of said chapter 112 of the General Laws, as so appearing, is hereby amended by adding the following subsection:-

(e) Notwithstanding clauses (iii) and (iv) of subsection (d), an applicant shall be eligible for licensure as a home inspector without meeting the requirements of said clause (iii) or said clause (iv) of said subsection (d) if the applicant: (i) is a professional engineer licensed pursuant

919 to sections 81D to 81T, inclusive; and (ii) has performed not less than 50 home inspections under
920 the supervision of a licensed home inspector.

921 SECTION 80. Section 3 of chapter 121C of the General Laws, as appearing in the 2024
922 Official Edition, is hereby amended by striking out, in line 55, the word “MOBD” and inserting
923 in place thereof the following words:- the secretary.

924 SECTION 81. Section 4 of said chapter 121C, as so appearing, is hereby amended by
925 striking out, in line 9, the words “, MOBD and to the director,” and inserting in place thereof the
926 following words:- and secretary.

927 SECTION 82. Subsection (d) of section 5 of said chapter 121C, as so appearing, is
928 hereby amended by striking out, in line 21, the words “MOBD and” and inserting in place
929 thereof the following word:- the.

930 SECTION 83. Subsection (l) of said section 5 of said chapter 121C, as so appearing, is
931 hereby amended by striking out, in lines 67 to 68, the words “MOBD and the director” and
932 inserting in place thereof the following words:- the secretary.

933 SECTION 84. Said subsection (l) of said section 5 of said chapter 121C, as so appearing,
934 is hereby further amended by striking out, in lines 81 to 82, the words “MOBD and director” and
935 inserting in place thereof the following words:- the secretary.

936 SECTION 85. Section 6 of said chapter 121C, as so appearing, is hereby amended by
937 striking out, in line 28, the words “MOBD and director” and inserting in place thereof the
938 following words:- the secretary.

SECTION 86. Said section 6 of said chapter 121C, as so appearing, is hereby further amended by striking out, in lines 44 to 45, the words “department of housing and community development” and inserting in place thereof the following words:- secretary.

SECTION 87. Section 10 of said chapter 121C, as so appearing, is hereby amended by striking out, in line 5, the words “MOBD and the director” and inserting in place thereof the following words:- the secretary.

SECTION 88. Section 185A of chapter 140 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out subsection (a) and inserting in place thereof the following 2 subsections:-

(a) For the purposes of this section and sections 185B to 185G, inclusive, the following term shall have the following meaning unless the context clearly requires otherwise:

“Live event”, a musical performance, sporting event, theatrical production, comedy show or other entertainment event performed in person to an in-person audience in an arena, concert venue or other fixed location including, but not limited to, an event licensed under sections 181 and 182 or chapter 128A; provided, however, that “live event” shall not include: (i) a musical performance, sporting event, theatrical production, comedy show or other entertainment event performed in an arena, concert venue or other fixed location with a capacity of less than 1,000 attendees; (ii) the broadcast or transmission of such an entertainment event attended exclusively via television, internet or other remote means; or (iii) in-person attendance at an entertainment event that consists of entertainment, whether live or recorded, that is observed by an audience solely via broadcast or transmission or by the playing of a recording, including, but not limited to, a showing of a film in a movie theater.

961 (a½) No person shall engage in the business of selling tickets or the business of reselling
962 or facilitating a mechanism for 2 or more parties to participate in the resale of any ticket of
963 admission to a live event, whether such business is conducted on or off the premises on which
964 such ticket is to be used, without being licensed by the commissioner of occupational licensure.

965 SECTION 89. Subsection (b) of said section 185A of said chapter 140, as so appearing, is
966 hereby amended by striking out, in line 12, the words “until the first day of January next after its
967 date” and inserting in place thereof the following words:- for 2 years following its date of
968 issuance.

969 SECTION 90. Said subsection (b) of said section 185A of said chapter 140, as so
970 appearing, is hereby further amended by striking out the fourth sentence and inserting in place
971 thereof the following sentence:- The sale of a ticket, entitling the holder of said ticket to
972 admission to any such live event upon payment either of nothing or a sum less than that
973 demanded of the public generally shall be deemed to be a resale pursuant to subsection (a½).

974 SECTION 91. Section 185B of said chapter 140, as so appearing, is hereby amended by
975 striking out subsection (a) and inserting in place thereof the following subsection:-

976 (a) The fee for each license granted under section 185A and for each renewal thereof
977 shall be determined by the secretary of administration and finance under section 3B of chapter 7
978 for the filing thereof.

979 SECTION 92. Subsection (a) of section 185D of said chapter 140, as so appearing, is
980 hereby amended by striking out, in lines 3 to 4, the words “theatrical exhibition, public show or
981 public amusement or exhibition” and inserting in place thereof the following words:- live event.

982 SECTION 93. Subsection (b) of said section 185D of said chapter 140, as so appearing, is
983 hereby amended by striking out, in lines 10 to 12, inclusive, the words “theatrical exhibition,
984 public show or public amusement or exhibition of any description” and inserting in place thereof
985 the following words:- live event.

986 SECTION 94. Said chapter 140, as so appearing, is hereby further amended by striking
987 out section 185G and inserting in place thereof the following section:-

988 Section 185G. (a) Section 182A shall not apply to tickets or other evidences of entry to
989 theatrical exhibitions, public shows or public amusements or exhibitions, all the proceeds of the
990 sale or resale of which inure exclusively to the benefit of religious, educational or charitable
991 institutions, societies or organizations or civic leagues or organizations not organized for profit
992 but operated exclusively for the promotion of social welfare or to associations of veterans of any
993 wars of the United States, or to tickets or other evidences of entry to agricultural fairs, none of
994 the profits of the sale or resale of which are distributed to stockholders or members of the
995 association conducting the same.

996 (b) Sections 185A to 185F, inclusive, shall not apply to tickets to live events, all the
997 proceeds of the sale or resale of which inure exclusively to the benefit of religious, educational
998 or charitable institutions, societies or organizations or civic leagues or organizations not
999 organized for profit but operated exclusively for the promotion of social welfare or to
1000 associations of veterans of any wars of the United States, or to tickets to agricultural fairs, none
1001 of the profits of the sale or resale of which are distributed to stockholders or members of the
1002 association conducting the same.

1003 SECTION 95. Section 100 of chapter 143 of the General Laws, as appearing in the 2024
1004 Official Edition, is hereby amended by striking out, in lines 9 to 10, the words “other than the
1005 specialized stretch energy code” and inserting in place thereof the following words:- other than
1006 the current and future specialized stretch energy codes.

1007 SECTION 96. Clause (vii) of subsection (b) of section 24L of chapter 149 of the General
1008 Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 104
1009 to 105, the words “, provided that such consideration is specified in the noncompetition
1010 agreement”.

1011 SECTION 97. Said clause (vii) of said subsection (b) of said section 24L of said chapter
1012 149, as so appearing, is hereby further amended by adding the following sentence:-

1013 If the noncompetition agreement is supported by other mutually-agreed upon
1014 consideration in lieu of a garden leave clause, then the other mutually-agreed upon consideration
1015 must be negotiated in connection with the separation from employment and at least equivalent in
1016 value to the garden leave payments otherwise required by this clause.

1017 SECTION 98. Section 12 of chapter 156C of the General Laws, as appearing in the 2024
1018 Official Edition, is hereby amended by striking out subsection (d) and inserting in place thereof
1019 the following 3 subsections:-

1020 (d) The fee for the filing of the certificate of organization required by subsection (a) shall
1021 be \$100. The fee for the filing of the annual report required by subsection (c) shall be \$200 for
1022 the first annual report; \$300 for the second annual report; \$400 for the third annual report; and
1023 \$500 for the fourth annual report and for each annual report filed thereafter. Such fees shall be
1024 paid to the state secretary at the time the certificate of organization or the annual report is filed.

(e) Notwithstanding the fees set forth in subsection (d), if a limited liability company (i) is established for the purpose of holding title to real property; (ii) owns assets in excess of \$1,000,000; or (iii) is expected to own assets in excess of \$1,000,000 within the subsequent 12 month period, then the fee for the filing of the certificate of organization required by subsection (a) shall be \$500; and the fee for the filing of each annual report required by subsection (c) shall be \$500 beginning with the annual report that includes an affirmative attestation of any of the conditions set forth in clauses (i) to (iii) of the preceding sentence. Such fees shall be paid to the state secretary at the time the certificate of organization or the annual report is filed.

(f) The person filing the certificate of organization or annual report shall in every instance attest as to whether the limited liability company (i) is established for the sole purpose of holding title to real property; (ii) owns assets in excess of \$1,000,000; or (iii) is expected to own assets in excess of \$1,000,000 within the subsequent 12 month period. A person making such filing who makes an inaccurate attestation shall be subject to a civil fine of \$10,000 for each occurrence. Such certification shall be the basis for determining eligibility under subsection (e).

SECTION 99. Subsection (b) of section 134 of chapter 164 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 103 to 104, the words “Renewable Energy Trust Fund, established pursuant to section 9” and inserting in place thereof the following words:- Climatetech Investment Fund established pursuant to section 15.

SECTION 100. Said Chapter 164 of the General Laws is hereby further amended by adding the following section:-

Section 152. (a) As used in this section, the followings words shall have the following meanings unless the context requires otherwise:

1047 “Economic development rates”, standardized utility tariffs and discounted rates offered
1048 by a distribution company designed to attract new businesses to Massachusetts and promote
1049 expansion by businesses already located in the commonwealth.

1050 “Special contracts”, discounted utility rates negotiated between distribution companies
1051 and large new businesses locating to Massachusetts or large new businesses expanding in the
1052 commonwealth.

1053 (b) Each distribution company shall offer an economic development rate and special
1054 contracts. Each distribution company shall develop guidelines for large new businesses locating
1055 to Massachusetts or large new businesses expanding in the commonwealth to seek a special
1056 contract. Such rates, contracts and guidelines shall be as consistent as practicable between the
1057 distribution companies.

1058 (c) Economic development rates and special contracts shall not shift costs to or increase
1059 costs for other Massachusetts utility customers.

1060 (d) Economic development rates may include associated requirements, including but not
1061 limited to, job creation or retention, capital investment commitments, participation in energy
1062 efficiency or demand response programs and periodic progress reporting on requirements.

1063 (e) Each distribution company may request modifications to any approved economic
1064 development rate and guidelines to seek a special contract with the department of public utilities
1065 as necessary to accommodate changed circumstances.

1066 (f) Each distribution company shall present the proposed rate and guidelines to the
1067 executive offices of economic development and energy and environmental affairs at least one

1068 month prior to filing a new or amended economic development rate or guidelines to seek a
1069 special contract with the department of public utilities.

1070 SECTION 101. Notwithstanding any general or special law to the contrary, the members
1071 serving on the advisory board on employee ownership appointed by the governor pursuant to
1072 subsection (a) of section 204 of chapter 6 on the effective date of this act shall continue to serve
1073 for the remainder of their current terms as originally appointed. Upon the expiration of the terms
1074 of such members, the governor shall appoint 2 members to serve for a term of 1 year, 3 members
1075 to serve a term of 2 years, 3 members to serve a term of 3 years and 3 members to serve for a
1076 term of 4 years. Upon the expiration of such terms, the governor shall appoint all members to
1077 serve a term of 4 years.

1078 SECTION 102. Notwithstanding any general or special law to the contrary, any
1079 unexpended funds held by the Massachusetts Alternative and Clean Energy Investment Trust
1080 Fund established in section 35FF of chapter 10 of the General Laws and the Renewable Energy
1081 Trust Fund established in section 9 of chapter 23J of the General Laws shall transfer to the
1082 Climatetech Investment Fund established in section 15 of chapter 23J.

1083 SECTION 103. (a) Notwithstanding any general or special law to the contrary, if the
1084 Economic Assistance Coordinating Council awards less than the full amount of tax credits
1085 authorized by subsection (c) of section 3D of chapter 23A; or if the Massachusetts Life Science
1086 Center awards less than the full amount of tax credits authorized by subsection (d) of section 5 of
1087 chapter 23I; or if the Massachusetts Clean Energy Center awards less than the full amount of tax
1088 credits authorized by subsection (d) of section 16 of chapter 23J, then in each case the balance of
1089 unallocated tax credits, and the funds budgeted to finance that balance, may be carried forward to

1090 the next calendar year with the approval of the secretary of administration and finance, in
1091 consultation with the secretary of economic development.

1092 (b) Notwithstanding any general or special law to the contrary, the secretary of
1093 administration and finance, in consultation with the secretary of economic development, shall
1094 have the discretion to reallocate some or all of the tax credits that are carried forward pursuant to
1095 subsection (a) among and between the tax credit programs established pursuant to section 3A of
1096 chapter 23A, section 5 of chapter 23I or section 16 of chapter 23. Any credits carried forward or
1097 reallocated shall increase, for the calendar year in which the carry forward or reallocation occurs,
1098 the annual cap or limitation otherwise applicable to the receiving program by the amount of such
1099 credits carried forward or reallocated.

1100 (c) Each year on or before March 1, the secretary of administration and finance, in
1101 consultation with the secretary of economic development, shall submit a report to the house and
1102 senate committees on ways and means setting forth the amount of tax credits, if any, carried
1103 forward and reallocated pursuant to subsections (a) and (b) in the prior calendar year. Said report
1104 shall state the adjusted cap applicable to each tax credit program for the upcoming calendar year.

1105 SECTION 104. Notwithstanding any other general or special law to the contrary, the
1106 pension reserves investment management board established under section 23 of chapter 32 of the
1107 General Laws shall commit not less than \$50,000,000 and not more than \$100,000,000 in a fund
1108 or fund of funds established in Massachusetts for the benefit of early stage or growth stage
1109 companies domiciled or having a significant operating presence in the Commonwealth. Said
1110 fund or fund of funds shall (i) commit capital only to companies domiciled in Massachusetts or
1111 having a significant operating presence in Massachusetts and funds with headquarters in

1112 Massachusetts that intend to invest disproportionately in companies domiciled in Massachusetts
1113 or having a significant operating presence in Massachusetts; and (ii) actively seek participation
1114 from global institutional capital, including without limitation sovereign wealth funds, national
1115 public investment funds, and public pension funds. The secretary of the Executive Office of
1116 Economic Development shall select the fund or fund of funds or select a manager for a new fund
1117 or fund of funds if one with suitable investment parameters does not presently exist; provided
1118 that the fund’s investment policies align with the purposes of this section, and the fund or fund of
1119 funds is managed consistent with sound operating, accounting and reporting practices.

1120 SECTION 105. (a) Within 6 months of the effective date of this act, distribution
1121 companies shall file with the department of public utilities an economic development rate and
1122 guidelines for large new businesses locating to Massachusetts or large new businesses expanding
1123 in the Commonwealth to seek a special contract, pursuant to section 152 of chapter 164, as
1124 inserted by Section 100 of this Act.

1125 (b) Upon receipt of the filing required under subsection (a), the department of public
1126 utilities shall conduct a proceeding to approve, deny or modify such proposal. The department
1127 may only approve such proposal if it finds that the proposed economic development rate and
1128 guidance does not shift costs to or increase costs for other Massachusetts utility customers and
1129 either supports or does not hinder the achievement of the statewide greenhouse gas emissions
1130 limits and sublimits under chapter 21N.

1131 SECTION 106. Section 2 of chapter 498 of the acts of 1993, as most recently amended
1132 by chapter 238 of the acts of 2024, is hereby amended by striking out the definition of “Bank or
1133 Government land bank” and inserting in place thereof the following definition:-

1134 “Bank” or “Government land bank,” shall mean and refer to the Massachusetts
1135 Development Finance Agency, the independent authority established by section 23G of the
1136 General Laws, and successor to the Government Land Bank pursuant to chapter 289 of the Acts
1137 of 1998.

1138 SECTION 107. Said chapter 498 of the acts of 1993, as so amended, is hereby further
1139 amended by inserting after section 10 the following section:-

1140 SECTION 10A. Notwithstanding anything to the contrary in section 10, from and after
1141 January 1, 2027, any substantial amendment to the Reuse Plan or By-laws shall be proposed by
1142 MassDevelopment, and MassDevelopment shall hold no fewer than two public hearings in
1143 Devens to receive public comment on the proposed amendment to the Reuse Plan or By-laws.
1144 Notice of said public hearings shall be provided in a newspaper or newspapers of general
1145 circulation in the Devens Region at least 14 days prior to the dates established for said public
1146 hearings, and a copy of said notice shall also be provided to each of the Towns for posting in
1147 their respective town halls as they may see fit. Within 30 days of the last public hearing held by
1148 MassDevelopment, MassDevelopment shall convene a single meeting to consider the proposed
1149 substantial amendment to the Reuse Plan of By-laws, which single meeting shall be held at a
1150 location within Devens designated by MassDevelopment, or if it is infeasible to hold the meeting
1151 within Devens, then at another location reasonably accessible to the residents of the Towns. Any
1152 person registered to vote in any of the Towns, including but not limited to any person with a
1153 place of residence in Devens, shall be eligible to vote at said meeting and the clerks of the Towns
1154 shall verify the voter registration status of all attendees at the meeting. MassDevelopment shall
1155 pay the reasonable costs incurred by the clerks of the Towns that are directly attributable to the
1156 verification of voter registration status at the meeting. Any proposed amendment to the Reuse

1157 Plan or By-laws shall be presented at said meeting by MassDevelopment, and no revision to the
1158 proposed amendment shall be permitted at the meeting. At any such single meeting to consider a
1159 substantial amendment to the Reuse Plan or By-laws, 50 voters registered to vote in any of the
1160 Towns, including but not limited to any resident of Devens, and present at the single meeting,
1161 shall constitute a quorum. No business, other than adjournment, shall be transacted unless a
1162 quorum is present. A proposed amendment to the Reuse Plan or By-laws shall be effective upon
1163 a majority vote of the registered voters attending the single meeting. If an amendment is
1164 approved at the meeting, MassDevelopment shall, within 7 days of said meeting, provide a
1165 certified copy of said amendment to the Commission, which shall revise the Reuse Plan or By-
1166 laws in accordance therewith within 7 days of receipt of said certified copy.

1167 SECTION 108. Item 7002-1509 of section 2 of chapter 140 of the acts of 2024 is hereby
1168 amended by adding the following words:- or other similar visa programs.

1169 SECTION 109. Item 7002-1522 of section 2 of chapter 238 of the acts of 2024 is hereby
1170 amended by striking out the words “technologies developed with the assistance of” and inserting
1171 in place thereof the following words:- technologies, with preference for companies receiving.

1172 SECTION 110. Item 7002-1523 of said section 2 of said chapter 238 is hereby amended
1173 by striking out the words “proteins developed with the assistance of” and inserting in place
1174 thereof the following words:- proteins, with preference for companies receiving.

1175 SECTION 111. Sections 320 and 324 of said chapter 238 are hereby repealed.

1176 SECTION 112. Notwithstanding any general or special law to the contrary, the
1177 unexpended and unencumbered balances of the bond-funded authorizations in the following
1178 accounts shall cease to be available for expenditure 180 days after the effective date of this act:

1179 7002-8013

1180 7002-8016

1181 7002-8017

1182 7002-8022

1183 7002-8035

1184 7002-8037

1185 7002-8038

1186 7002-8041

1187 7002-8049

1188 SECTION 113. Notwithstanding any general or special law to the contrary, to meet the
1189 expenditures necessary in carrying out section 2, the state treasurer shall, upon receipt of a
1190 request by the governor, issue and sell bonds of the commonwealth in an amount to be specified
1191 by the governor from time to time but not exceeding, in the aggregate, \$305,000,000. All bonds
1192 issued by the commonwealth, as aforesaid, shall be designated on their face “An Act Relative to
1193 Massachusetts Winning Global Investment, Talent, and Innovation” and shall be issued for a
1194 maximum term of years, not exceeding 30 years, as the governor may recommend to the general
1195 court pursuant to section 3 of Article LXII of the Amendments to the Constitution; provided,
1196 however, that all such bonds shall be payable not later than June 30, 2061. All interest and
1197 payments on account of principal on such obligations shall be payable from the General Fund.

1198 Bonds and interest thereon issued under the authority of this section shall, notwithstanding any
1199 other provision of this act, be general obligations of the commonwealth.

1200 SECTION 114. Notwithstanding any general or special law to the contrary, the annual
1201 report required under subsection (g) of section 17 of chapter 23J of the General Laws, as inserted
1202 by section 30, shall be due 1 year from the effective date of this act.

1203 SECTION 115. Subsection (ii) of section 6 of chapter 62 of the General Laws, as inserted
1204 by section 194 of said chapter 238 of the acts of 2024, shall take effect for taxable years
1205 beginning on or after January 1, 2027.

1206 SECTION 116. Section 38UU of chapter 63 of the General Laws, inserted by section 212
1207 of said chapter 238 of the acts of 2024, shall take effect for taxable years beginning on or after
1208 January 1, 2027.

1209 SECTION 117. Section 316 of said chapter 238 of the acts of 2024 shall take effect on
1210 January 1, 2033.

1211 SECTION 118. Not less than 270 days after the effective date of this act, each electric
1212 company shall share with the board established in section 17 of chapter 23J as inserted by section
1213 30 of this act, the processes they plan to implement to address gridtech deployment barriers
1214 internal to the electric company. Such processes shall include procedures for addressing barriers
1215 identified by the board pursuant to subsection (g) of section 17 of chapter 23J as inserted by
1216 section 30 of this act. Such processes shall be as similar between the investor-owned electric
1217 companies as practicable.

1218 SECTION 119. Not less than 270 days after the effective date of this act, the board
1219 established in section 17 of chapter 23J as inserted by section 30 of this act shall develop and
1220 vote to file with the department of public utilities a process for the department to review, on an
1221 expedited basis, requests for limited waivers of prior department orders that will alleviate
1222 gridtech deployment barriers. Such process shall be limited to reviewing waivers of prior
1223 department orders that are time-bound and finite in scope.

1224 SECTION 120. Sections 35, 36, and 42 shall take effect for all municipalities upon the
1225 effective date of this act; provided, however, that in municipalities that adopted a zoning
1226 ordinance or by-law requiring some form of site plan review prior to the effective date of this act,
1227 the provisions of this section shall not be effective with respect to such zoning ordinance or by-
1228 law until the date that is one year after the effective date of this act.

1229 SECTION 121. Section 98 shall take effect on January 1, 2027.

1230 SECTION 122. Sections 37, 39, 40, 41, 43, 44, 45, 54, 55, 63 and 65 shall take effect on
1231 July 1, 2027.